

□ Your Safety Comes First

Some of what you shared suggests you may be dealing with a situation that could put your safety at risk. You are not alone, and help is available right now — you do not need a lawyer or any money to reach it.

If you are in immediate danger, call 911.

You can reach trained, confidential help any time:

- **National Domestic Violence Hotline** — call 1-800-799-7233, or text START to 88788 (<https://www.thehotline.org>)
- **National Dating Abuse Helpline** — call 1-866-331-9474, or text LOVEIS to 22522
- **Eldercare Locator** — call 1-800-677-1116 (<https://eldercare.acl.gov>)
- **Adult Protective Services** — call Contact your local APS agency
- **Stalking Prevention, Awareness, and Resource Center (SPARC)** (<https://www.stalkingawareness.org>)
- **Text the Crisis Text Line:** text HOME to **741741** (open 24/7, for any kind of crisis)
- A safety plan can help you prepare for emergencies. The National DV Hotline can help create one.

Asking a court to protect you. If someone has hurt you or made you afraid, you can ask a court for an **Order for Protection** (sometimes called a

restraining order). It is a free request you can make yourself: the court clerk's office or a local advocate can give you the forms and walk you through them, often the same day. A domestic violence advocate (reachable through the hotline above) can help you fill them out and can go with you.

You get to decide what feels safe for you. The steps above are here whenever you are ready.

□ Deadlines & Time-Sensitive Items

Read this first. Missing a legal deadline can end a case. The dates below are estimates generated automatically — **always confirm the exact date with the court or a lawyer.**

△ **I don't want to put my son in jail, I just want my money to stop disappearing and to keep my house and honestly I don't want to be afraid at my own kitchen table.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Jurisdiction:** MN
- Estimated — confirm the exact date with the court or a lawyer.

⚠ **Dale grabbed my wrist hard enough to leave a bruise on June 14th.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Triggering event:** incident on 2026-06-14
- **Jurisdiction:** MN
- Estimated — confirm the exact date with the court or a lawyer.

⚠ **The bank sent me a letter dated June 26th saying they flagged unusual activity and want me to come in.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Triggering event:** deadline on 2026-07-10
- **Jurisdiction:** MN
- Estimated — confirm the exact date with the court or a lawyer.

⚠ **there's some appointment on July 16th where I'm apparently supposed to sign listing papers.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
 - **Triggering event:** hearing on 2026-07-16
 - **Jurisdiction:** MN
 - Estimated — confirm the exact date with the court or a lawyer.
-

Executive Summary

This intake surfaced 13 potential legal issues across Minnesota. The most strongly supported issues are Elder Abuse - Financial Exploitation, Informed Consent Issues, and Undue Influence. 4 time-sensitive item(s) were detected; confirm the exact dates with the court or a lawyer. Safety concerns were detected in this narrative; see the safety resources below. Analysis completeness is 100%; 29 follow-up questions below would strengthen the assessment.

Completeness Score: 100%

Untitled Intake

Generated: 2026-07-11 22:32 UTC

Matter ID: 250

Run ID: 71

Completeness: 100%

General

| Informed Consent Issues

Claim Type: discovered | **Confidence:** 85%

FOLIO IRI: <https://folio.openlegalstandard.org/R87MDAJj8ZL7SprFAEqipk2>

ISSUE

Given that Lorraine was on pain medication during the time she signed the power of attorney document and signed where pointed by Dale, this raises significant concerns about her capacity to make informed decisions.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Informed Consent Issues' has not been explored with fact mappings

CONCLUSION

No elements defined

| Undue Influence

Claim Type: discovered | **Confidence:** 80%

FOLIO IRI: <https://folio.openlegalstandard.org/RW5myKZOaxNl6EtRtjlHHq>

ISSUE

The fact that Lorraine signed the power of attorney while under the influence of pain medication and simply followed Dale's directions raises concerns about her ability to fully understand and consent to the document.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Undue Influence' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): What procedural steps must be taken to prove undue influence in the context of a power of attorney?

CONCLUSION

No elements defined

| Breach of Duty

Claim Type: discovered | **Confidence:** 75%

ISSUE

Dale's actions suggest a potential breach of fiduciary duty, which could have significant legal implications in protecting Lorraine's finances and well-being.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Breach of Duty' has not been explored with fact mappings

CONCLUSION

No elements defined

| Capacity Issues

Claim Type: discovered | **Confidence:** 40%

ISSUE

Although Lorraine's mind is noted as 'fine', the context of her physical condition during the signing could challenge her legal capacity to authorize any documents during that timeframe.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Capacity Issues' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): What evidence is required to challenge someone's legal capacity to authorize documents due to their physical condition?

CONCLUSION

No elements defined

| Duty of Financial Institutions

Claim Type: discovered | **Confidence:** 40%

ISSUE

Given the patterns of withdrawals and the age of the account holder, the bank might have missed an opportunity to intervene, thus raising questions about their adherence to mandatory reporting laws.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

CONCLUSION

No elements defined

| Emotional Distress and Fear

Claim Type: discovered | **Confidence:** 40%

ISSUE

Dale's threats and aggressive behavior create a hostile living situation for Lorraine, potentially providing grounds for a claim for emotional distress and a need for protective orders.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

CONCLUSION

No elements defined

Improper Use of Power of Attorney

Claim Type: discovered | **Confidence:** 40%

ISSUE

Dale's actions, including monthly transfers labeled as 'caregiver pay' that were not agreed upon, could indicate he is misusing the power granted by Lorraine, which can have serious legal implications.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Improper Use of Power of Attorney' has not been explored with fact mappings

CONCLUSION

No elements defined

More possible issues (show more)

- **Potential Emotional Distress:** 40% confidence
- **Reporting Obligations:** 20% confidence
- **Bank Fraud Investigation:** 10% confidence

Minnesota

| Elder Abuse - Financial Exploitation

Claim Type: discovered | **Confidence:** 95%

FOLIO IRI: <https://folio.openlegalstandard.org/RxwfbvWrxjdHqJhrBu3RWT>

ISSUE

The facts indicate a patterned financial withdrawal from Lorraine's bank account without her consent, including unauthorized ATM withdrawals, checks, and transfer payments to Dale labeled as 'caregiver pay', raising substantial concerns of financial exploitation given her vulnerable status as an elderly individual.

RULE

No authorities identified for this claim.

APPLICATION

- **Fraudulent Misrepresentation:** Unsupported - The perpetrator made false representations or engaged in deceitful conduct to gain control over the victim's finances.
- **Mental Capacity:** Unsupported - The victim did not have the capacity to understand the nature or consequences of the financial transactions.
- **Vulnerability of the Victim:** Supported (85% confidence) - The victim is a person who is elderly or has a disability that makes them vulnerable to financial exploitation.
 - Fact: Lorraine is 79 years old (85% match)
 - Fact: Lorraine has been widowed since 2019 (85% match)

- **Unauthorized Use of Funds:** Supported (85% confidence) - The exploitation involves unauthorized use or control over the victim's financial resources.
 - Fact: Lorraine receives \$836.50 per month from the IUOE Local Pension Fund as a survivor benefit. (85% match)
 - Fact: Lorraine did not make or approve ATM cash withdrawals since January. (85% match)
 - Fact: Dale took my debit card to do the shopping and never gave it back. (85% match)
 - Fact: I have not seen any of the cash being withdrawn. (85% match)
 - Fact: In February, there was a check for \$6,400 to a boat place. (85% match)
 - Fact: There are transfers to Dale's own account every month that are called 'caregiver pay'. (85% match)

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 95): Element 'Fraudulent Misrepresentation' is not yet supported by any facts
 - Element: Fraudulent Misrepresentation
- **Unsupported Element** (Priority 95): Element 'Mental Capacity' is not yet supported by any facts
 - Element: Mental Capacity
- **Procedural Requirement** (Priority 50): What is the filing deadline for financial exploitation claims in your jurisdiction?

CONCLUSION

2 of 4 elements supported (42% confidence)

Abuse of Adults

Claim Type: discovered | **Confidence:** 40%

Related to: Elder Abuse - Financial Exploitation

FOLIO IRI: <https://folio.openlegalstandard.org/R86KwDCIco0lQwycGRDQ7M1>

ISSUE

Discovered via FOLIO ontology traversal from Elder Abuse - Financial Exploitation (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Abuse of Adults' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): What are the jurisdictional requirements for pursuing claims of adult abuse?

CONCLUSION

No elements defined

Financial Elder Abuse

Claim Type: discovered | **Confidence:** 40%

Related to: Elder Abuse - Financial Exploitation

FOLIO IRI: <https://folio.openlegalstandard.org/R7ueaoXfaJI7dcYi5MFDcRX>

ISSUE

Discovered via FOLIO ontology traversal from Elder Abuse - Financial Exploitation (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Financial Elder Abuse' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): Is there a specific procedural requirement for reporting financial elder abuse in your state?

CONCLUSION

No elements defined

| Civil Claims

Claim Type: discovered | **Confidence:** 20%

Related to: Elder Abuse - Financial Exploitation

ISSUE

Discovered via FOLIO ontology traversal from Elder Abuse - Financial Exploitation (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Civil Claims' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): Are there any procedural gaps or specific filing requirements for civil claims related to elder abuse?

CONCLUSION

No elements defined

| Physical Elder Abuse

Claim Type: discovered | **Confidence:** 20%

Related to: Elder Abuse - Financial Exploitation

ISSUE

Discovered via FOLIO ontology traversal from Elder Abuse - Financial Exploitation (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Physical Elder Abuse' has not been explored with fact mappings

- **Procedural Requirement** (Priority 50): Are there mandatory reporting requirements for physical abuse of elders in your jurisdiction?

CONCLUSION

No elements defined

| Domestic Violence

Claim Type: discovered | **Confidence:** 40%

ISSUE

Dale's actions of grabbing Lorraine's wrist to the point of bruising and his threatening statements create potential domestic violence claims, raising concerns about her physical and emotional safety.

RULE

No authorities identified for this claim.

APPLICATION

- **Relationship between Parties:** Unsupported - There is a domestic relationship between the victim and the perpetrator.
- **Act of Violence:** Supported (85% confidence) - The defendant committed an act of physical violence against the victim.
 - Fact: Dale grabbed my wrist hard enough to leave a bruise on June 14th. (85% match)
- **Threatening Behavior:** Supported (85% confidence) - The defendant made threats that instilled fear for the victim's safety.
 - Fact: Dale threatened me, saying if I keep asking questions I'll end up at Ridgeview, that's the nursing home. (85% match)

- Fact: I am afraid to say anything in my own house since the threat. (85% match)

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 40): Element 'Relationship between Parties' is not yet supported by any facts
 - Element: Relationship between Parties
- **Procedural Requirement** (Priority 50): What is the statute of limitations for filing a domestic violence claim in your area?

CONCLUSION

2 of 3 elements supported (57% confidence)

| Power of Attorney Abuse

Claim Type: discovered | **Confidence:** 40%

ISSUE

The facts surrounding the execution of the power of attorney suggest potential abuse, as Lorraine was on pain medication when she signed and indicated that she had not consented to certain financial transactions initiated by her son Dale.

RULE

No authorities identified for this claim.

APPLICATION

- **Valid Power of Attorney:** Supported (85% confidence) - A valid power of attorney exists that designates the attorney-in-fact and grants certain powers.
 - Fact: Lorraine M. Pryzbylski is the principal in the power of attorney document. (85% match)

- Fact: Dale J. Pryzbylski is the attorney-in-fact and is Lorraine's son. (85% match)
- **Abuse of Authority:** Supported (85% confidence) - The attorney-in-fact took actions beyond the scope of the authority granted or acted against the best interests of the principal.
 - Fact: The power of attorney includes powers for family maintenance. (85% match)
 - Fact: We never once agreed to the 'caregiver pay'. (85% match)
- **Informed Consent:** Supported (85% confidence) - The principal was not fully informed of or able to consent to the financial decisions made by the attorney-in-fact.
 - Fact: Lorraine is 79 years old (85% match)
 - Fact: Lorraine just signed where Dale pointed (85% match)
 - Fact: Lorraine had hip surgery (77% match)

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): Are there jurisdiction-specific requirements for challenging the validity of a power of attorney executed under questionable circumstances?

CONCLUSION

3 of 3 elements supported (85% confidence)

Action Items

Documents to Gather

- [] **[URGENT]** Element 'Fraudulent Misrepresentation' is not yet supported by any facts
 - **Claim:** Elder Abuse - Financial Exploitation
 - **Element:** Fraudulent Misrepresentation
- [] **[URGENT]** Element 'Mental Capacity' is not yet supported by any facts
 - **Claim:** Elder Abuse - Financial Exploitation
 - **Element:** Mental Capacity
- [] **[HELPFUL]** Element 'Relationship between Parties' is not yet supported by any facts
 - **Claim:** Domestic Violence
 - **Element:** Relationship between Parties

Follow-up Steps

- [] **[URGENT]** You asked if you can 'undo' the power of attorney. Yes — as long as your mind is clear, you can revoke it at any time with a signed, dated writing, and it takes effect against others (like the bank) once they actually get notice (Minn. Stat. § 523.11). The key step is delivering written revocation to BOTH your son and the bank right away. Would you like help doing that this week? [Authority: Minn. Stat. § 523.11, subd. 1 (a competent principal may revoke a power of attorney by a signed, dated writing; effective as to a third party on actual notice)]
- [] **[URGENT]** What you described — being physically hurt or threatened by a family or household member — may qualify you for an Order for Protection (a court order that can be issued the same day you ask, before any hearing). In Minnesota this is Minn. Stat. § 518B.01; other states have an equivalent. Would you like

- information about asking the court for one now, separate from any other case? [Authority: Minn. Stat. § 518B.01 (Order for Protection; ex parte relief available)]
- [] **[URGENT]** Because you may be a 'vulnerable adult' (relying on your son for care after surgery), there is a special court order that can quickly FREEZE the account draining and block the house sale — an Order for Protection Against Financial Exploitation of a Vulnerable Adult (Minn. Stat. § 609.2334), which a judge can issue right away in an emergency. This can also be reported to the state (MAARC, Minn. Stat. § 626.557). Would you like to ask the court for this before the July 16 appointment? [Authority: Minn. Stat. § 609.2334 (Order for Protection Against Financial Exploitation of a Vulnerable Adult — ex parte relief available); Minn. Stat. § 626.557 (vulnerable-adult reporting / MAARC)]
 - [] **[URGENT]** Even under a power of attorney, your son could pay himself or transfer your money to himself ONLY if the document specifically allowed it (Minn. Stat. § 523.24) — if that box was left blank, those transfers and the 'caregiver pay' likely exceeded his authority, revocation or not. A missing notary can also make the whole POA invalid (Minn. Stat. § 523.01). Do you have the actual POA document so a lawyer can check what was and wasn't authorized? [Authority: Minn. Stat. § 523.24 (statutory short-form POA authorizes self-gifting/self-transfers only if expressly elected); Minn. Stat. § 523.01 (valid POA requires acknowledgment)]
 - [] **[URGENT]** Your son grabbed your wrist hard enough to bruise and threatened you in your own home. Because he is a family/household member, you can ask for an Order for Protection that a judge can grant the same day (Minn. Stat. § 518B.01); a Harassment Restraining Order (Minn. Stat. § 609.748) is a backup. This is separate from the money issues. Do you have the photo of the bruise and would you feel safer with such an order? [Authority: Minn. Stat. § 518B.01 (Order for Protection — a son living in the home is a family/household member; ex parte relief); Minn. Stat. § 609.748 (Harassment Restraining Order fallback)]

- [] **[IMPORTANT]** Potential claim 'Capacity Issues' has not been explored with fact mappings
 - **Claim:** Capacity Issues
- [] **[IMPORTANT]** Potential claim 'Reporting Obligations' has not been explored with fact mappings
 - **Claim:** Reporting Obligations
- [] **[IMPORTANT]** Potential claim 'Breach of Duty' has not been explored with fact mappings
 - **Claim:** Breach of Duty
- [] **[IMPORTANT]** Potential claim 'Potential Emotional Distress' has not been explored with fact mappings
 - **Claim:** Potential Emotional Distress
- [] **[IMPORTANT]** Potential claim 'Financial Elder Abuse' has not been explored with fact mappings
 - **Claim:** Financial Elder Abuse
- [] **[IMPORTANT]** Potential claim 'Physical Elder Abuse' has not been explored with fact mappings
 - **Claim:** Physical Elder Abuse
- [] **[IMPORTANT]** Potential claim 'Abuse of Adults' has not been explored with fact mappings
 - **Claim:** Abuse of Adults
- [] **[IMPORTANT]** Potential claim 'Civil Claims' has not been explored with fact mappings
 - **Claim:** Civil Claims
- [] **[IMPORTANT]** Potential claim 'Undue Influence' has not been explored with fact mappings
 - **Claim:** Undue Influence

- [] **[IMPORTANT]** Potential claim 'Informed Consent Issues' has not been explored with fact mappings
 - **Claim:** Informed Consent Issues
- [] **[IMPORTANT]** Potential claim 'Improper Use of Power of Attorney' has not been explored with fact mappings
 - **Claim:** Improper Use of Power of Attorney
- [] **[IMPORTANT]** What is the filing deadline for financial exploitation claims in your jurisdiction?
 - **Claim:** Elder Abuse - Financial Exploitation
- [] **[IMPORTANT]** Are there jurisdiction-specific requirements for challenging the validity of a power of attorney executed under questionable circumstances?
 - **Claim:** Power of Attorney Abuse
- [] **[IMPORTANT]** What is the statute of limitations for filing a domestic violence claim in your area?
 - **Claim:** Domestic Violence
- [] **[IMPORTANT]** Is there a specific procedural requirement for reporting financial elder abuse in your state?
 - **Claim:** Financial Elder Abuse
- [] **[IMPORTANT]** Are there mandatory reporting requirements for physical abuse of elders in your jurisdiction?
 - **Claim:** Physical Elder Abuse
- [] **[IMPORTANT]** What are the jurisdictional requirements for pursuing claims of adult abuse?
 - **Claim:** Abuse of Adults
- [] **[IMPORTANT]** Are there any procedural gaps or specific filing requirements for civil claims related to elder abuse?
 - **Claim:** Civil Claims

- [] **[IMPORTANT]** What procedural steps must be taken to prove undue influence in the context of a power of attorney?
 - **Claim:** Undue Influence
- [] **[IMPORTANT]** What evidence is required to challenge someone's legal capacity to authorize documents due to their physical condition?
 - **Claim:** Capacity Issues
- [] **[IMPORTANT]** What are the steps for initiating a bank fraud investigation related to elder financial exploitation in your jurisdiction?
 - **Claim:** Bank Fraud Investigation

Gap Report Appendix

Overall Completeness: 100%

[=====] 100%

Abuse of Adults

- **Unexplored Claim** (Priority 50): Potential claim 'Abuse of Adults' has not been explored with fact mappings
 - See Action Item #14
- **Procedural Requirement** (Priority 50): What are the jurisdictional requirements for pursuing claims of adult abuse?
 - See Action Item #24

Bank Fraud Investigation

- **Procedural Requirement** (Priority 50): What are the steps for initiating a bank fraud investigation related to elder financial exploitation in your jurisdiction?
 - See Action Item #28

Breach of Duty

- **Unexplored Claim** (Priority 50): Potential claim 'Breach of Duty' has not been explored with fact mappings
 - See Action Item #10

Capacity Issues

- **Unexplored Claim** (Priority 50): Potential claim 'Capacity Issues' has not been explored with fact mappings
 - See Action Item #8
- **Procedural Requirement** (Priority 50): What evidence is required to challenge someone's legal capacity to authorize documents due to their physical condition?
 - See Action Item #27

Civil Claims

- **Unexplored Claim** (Priority 50): Potential claim 'Civil Claims' has not been explored with fact mappings
 - See Action Item #15
- **Procedural Requirement** (Priority 50): Are there any procedural gaps or specific filing requirements for civil claims related to elder abuse?
 - See Action Item #25

Domestic Violence

- **Unsupported Element** (Priority 40): Element 'Relationship between Parties' is not yet supported by any facts
 - Element: Relationship between Parties
 - See Action Item #29
- **Procedural Requirement** (Priority 50): What is the statute of limitations for filing a domestic violence claim in your area?
 - See Action Item #21

Elder Abuse - Financial Exploitation

- **Unsupported Element** (Priority 95): Element 'Fraudulent Misrepresentation' is not yet supported by any facts
 - Element: Fraudulent Misrepresentation
 - See Action Item #1
- **Unsupported Element** (Priority 95): Element 'Mental Capacity' is not yet supported by any facts
 - Element: Mental Capacity
 - See Action Item #2
- **Procedural Requirement** (Priority 50): What is the filing deadline for financial exploitation claims in your jurisdiction?
 - See Action Item #19

Financial Elder Abuse

- **Unexplored Claim** (Priority 50): Potential claim 'Financial Elder Abuse' has not been explored with fact mappings
 - See Action Item #12
- **Procedural Requirement** (Priority 50): Is there a specific procedural requirement for reporting financial elder abuse in your state?
 - See Action Item #22

Improper Use of Power of Attorney

- **Unexplored Claim** (Priority 50): Potential claim 'Improper Use of Power of Attorney' has not been explored with fact mappings
 - See Action Item #18

Informed Consent Issues

- **Unexplored Claim** (Priority 50): Potential claim 'Informed Consent Issues' has not been explored with fact mappings
 - See Action Item #17

Physical Elder Abuse

- **Unexplored Claim** (Priority 50): Potential claim 'Physical Elder Abuse' has not been explored with fact mappings
 - See Action Item #13
- **Procedural Requirement** (Priority 50): Are there mandatory reporting requirements for physical abuse of elders in your jurisdiction?
 - See Action Item #23

Potential Emotional Distress

- **Unexplored Claim** (Priority 50): Potential claim 'Potential Emotional Distress' has not been explored with fact mappings
 - See Action Item #11

Power of Attorney Abuse

- **Procedural Requirement** (Priority 50): Are there jurisdiction-specific requirements for challenging the validity of a power of attorney executed under questionable circumstances?
 - See Action Item #20

Reporting Obligations

- **Unexplored Claim** (Priority 50): Potential claim 'Reporting Obligations' has not been explored with fact mappings
 - See Action Item #9

Uncategorized

- **Procedural Requirement** (Priority 90): What you described — being physically hurt or threatened by a family or household member — may qualify you for an Order for Protection (a court order that can be issued the same day you ask, before any hearing). In Minnesota this is Minn. Stat. § 518B.01; other states have an equivalent. Would you like information about asking the court for one now, separate from any other case? [Authority: Minn. Stat. § 518B.01 (Order for Protection; ex parte relief available)]
 - See Action Item #4
- **Procedural Requirement** (Priority 92): You asked if you can 'undo' the power of attorney. Yes — as long as your mind is clear, you can revoke it at any time with a signed, dated writing, and it takes effect against others (like the bank) once they actually get notice (Minn. Stat. § 523.11). The key step is delivering written revocation to BOTH your son and the bank right away. Would you like help doing that this week? [Authority: Minn. Stat. § 523.11, subd. 1 (a competent principal may revoke a power of attorney by a signed, dated writing; effective as to a third party on actual notice)]
 - See Action Item #3
- **Procedural Requirement** (Priority 88): Even under a power of attorney, your son could pay himself or transfer your money to himself ONLY if the document specifically allowed it (Minn. Stat. § 523.24) — if that box was left blank, those transfers and the 'caregiver pay' likely exceeded his authority, revocation or not. A

missing notary can also make the whole POA invalid (Minn. Stat. § 523.01). Do you have the actual POA document so a lawyer can check what was and wasn't authorized? [Authority: Minn. Stat. § 523.24 (statutory short-form POA authorizes self-gifting/self-transfers only if expressly elected); Minn. Stat. § 523.01 (valid POA requires acknowledgment)]

- See Action Item #6

- **Procedural Requirement** (Priority 90): Because you may be a 'vulnerable adult' (relying on your son for care after surgery), there is a special court order that can quickly FREEZE the account draining and block the house sale — an Order for Protection Against Financial Exploitation of a Vulnerable Adult (Minn. Stat. § 609.2334), which a judge can issue right away in an emergency. This can also be reported to the state (MAARC, Minn. Stat. § 626.557). Would you like to ask the court for this before the July 16 appointment? [Authority: Minn. Stat. § 609.2334 (Order for Protection Against Financial Exploitation of a Vulnerable Adult — ex parte relief available); Minn. Stat. § 626.557 (vulnerable-adult reporting / MAARC)]

- See Action Item #5

- **Procedural Requirement** (Priority 88): Your son grabbed your wrist hard enough to bruise and threatened you in your own home. Because he is a family/household member, you can ask for an Order for Protection that a judge can grant the same day (Minn. Stat. § 518B.01); a Harassment Restraining Order (Minn. Stat. § 609.748) is a backup. This is separate from the money issues. Do you have the photo of the bruise and would you feel safer with such an order? [Authority: Minn. Stat. § 518B.01 (Order for Protection — a son living in the home is a family/household member; ex parte relief); Minn. Stat. § 609.748 (Harassment Restraining Order fallback)]

- See Action Item #7

Undue Influence

- **Unexplored Claim** (Priority 50): Potential claim 'Undue Influence' has not been explored with fact mappings
 - See Action Item #16
- **Procedural Requirement** (Priority 50): What procedural steps must be taken to prove undue influence in the context of a power of attorney?
 - See Action Item #26

Open Questions

1. Can you tell me any specific incidents where your son made false statements to you about your money or assets?
2. Have there been times when you felt confused or unable to make decisions about your finances?
3. Would you like assistance in writing a revocation of the power of attorney to send to your son and the bank?
4. Can you provide a copy of the power of attorney document you signed?
5. Do you feel safe in your home after the incident with your son, and would you want help starting an Order for Protection?
6. Do you have any evidence, like photos of injuries or witnesses, that can support your claim for an order of protection?
7. Can you describe any actions taken by your son that made you feel financially exploited or taken advantage of?
8. Have you noticed any unauthorized transactions in your bank accounts or any changes in your finances that you're concerned about?
9. Did your son make any decisions about your finances without your approval or knowledge?
10. Can you tell us more about this? Our notes say: Element 'Fraudulent Misrepresentation' is not yet supported by any facts.

11. Can you tell us more about this? Our notes say: Element 'Mental Capacity' is not yet supported by any facts.
12. There may be a rule or deadline to check. Our notes say: You asked if you can 'undo' the power of attorney. Yes — as long as your mind is clear, you can revoke it at any time with a signed, dated writing, and it takes effect against others (like the bank) once they actually get notice (Minn. Stat. § 523.11). The key step is delivering written revocation to BOTH your son and the bank right away. Would you like help doing that this week? [Authority: Minn. Stat. § 523.11, subd. 1 (a competent principal may revoke a power of attorney by a signed, dated writing; effective as to a third party on actual notice)].
13. There may be a rule or deadline to check. Our notes say: What you described — being physically hurt or threatened by a family or household member — may qualify you for an Order for Protection (a court order that can be issued the same day you ask, before any hearing). In Minnesota this is Minn. Stat. § 518B.01; other states have an equivalent. Would you like information about asking the court for one now, separate from any other case? [Authority: Minn. Stat. § 518B.01 (Order for Protection; ex parte relief available)].
14. There may be a rule or deadline to check. Our notes say: Because you may be a 'vulnerable adult' (relying on your son for care after surgery), there is a special court order that can quickly FREEZE the account draining and block the house sale — an Order for Protection Against Financial Exploitation of a Vulnerable Adult (Minn. Stat. § 609.2334), which a judge can issue right away in an emergency. This can also be reported to the state (MAARC, Minn. Stat. § 626.557). Would you like to ask the court for this before the July 16 appointment? [Authority: Minn. Stat. § 609.2334 (Order for Protection Against Financial Exploitation of a Vulnerable Adult — ex parte relief available); Minn. Stat. § 626.557 (vulnerable-adult reporting / MAARC)].

15. There may be a rule or deadline to check. Our notes say: Even under a power of attorney, your son could pay himself or transfer your money to himself ONLY if the document specifically allowed it (Minn. Stat. § 523.24) — if that box was left blank, those transfers and the 'caregiver pay' likely exceeded his authority, revocation or not. A missing notary can also make the whole POA invalid (Minn. Stat. § 523.01). Do you have the actual POA document so a lawyer can check what was and wasn't authorized? [Authority: Minn. Stat. § 523.24 (statutory short-form POA authorizes self-gifting/self-transfers only if expressly elected); Minn. Stat. § 523.01 (valid POA requires acknowledgment)].
16. There may be a rule or deadline to check. Our notes say: Your son grabbed your wrist hard enough to bruise and threatened you in your own home. Because he is a family/household member, you can ask for an Order for Protection that a judge can grant the same day (Minn. Stat. § 518B.01); a Harassment Restraining Order (Minn. Stat. § 609.748) is a backup. This is separate from the money issues. Do you have the photo of the bruise and would you feel safer with such an order? [Authority: Minn. Stat. § 518B.01 (Order for Protection — a son living in the home is a family/household member; ex parte relief); Minn. Stat. § 609.748 (Harassment Restraining Order fallback)].
17. We may have found another issue that could help you. Our notes say: Potential claim 'Capacity Issues' has not been explored with fact mappings.
18. We may have found another issue that could help you. Our notes say: Potential claim 'Reporting Obligations' has not been explored with fact mappings.
19. We may have found another issue that could help you. Our notes say: Potential claim 'Breach of Duty' has not been explored with fact mappings.
20. We may have found another issue that could help you. Our notes say: Potential claim 'Potential Emotional Distress' has not been explored with fact mappings.

21. We may have found another issue that could help you. Our notes say: Potential claim 'Financial Elder Abuse' has not been explored with fact mappings.
22. We may have found another issue that could help you. Our notes say: Potential claim 'Physical Elder Abuse' has not been explored with fact mappings.
23. We may have found another issue that could help you. Our notes say: Potential claim 'Abuse of Adults' has not been explored with fact mappings.
24. We may have found another issue that could help you. Our notes say: Potential claim 'Civil Claims' has not been explored with fact mappings.
25. We may have found another issue that could help you. Our notes say: Potential claim 'Undue Influence' has not been explored with fact mappings.
26. We may have found another issue that could help you. Our notes say: Potential claim 'Informed Consent Issues' has not been explored with fact mappings.
27. We may have found another issue that could help you. Our notes say: Potential claim 'Improper Use of Power of Attorney' has not been explored with fact mappings.
28. There may be a rule or deadline to check. Our notes say: What is the filing deadline for financial exploitation claims in your jurisdiction?.
29. There may be a rule or deadline to check. Our notes say: Are there jurisdiction-specific requirements for challenging the validity of a power of attorney executed under questionable circumstances?.